from Afzal and Shaukat; setting them aside created a huge dent in the case, as the Supreme Court noted. The high court in fact reprimanded the police in fairly strong terms for fabricating the arrest memos and for keeping people under illegal confinement.[1] In each case, Gilani's defence team successfully produced counter-evidence. As for the overwhelming evidence produced against Afzal, almost nothing was challenged at the trial court, making the task virtually insurmountable for his defence in the appeal courts. Looking at this evidence, therefore, the Supreme Court was obliged to conclude that Afzal was guilty of aiding and abetting the men who attacked Parliament.

To emphasize, although this has been fully documented (in, among other documents, the book *December 13: Terror over Democracy*[2] and reports by the People's Union for Democratic Rights[3]), the Supreme Court was not seized of the notorious character of the investigating agency, the mindset of the trial judge, the role of Afzal's trial lawyer and, of course, the role of the media in fanning pre-trial hysteria. These factors clearly contaminated the evidence against Afzal and its judicial examination. By design, the limited legal window through which the court examined the case did not allow any other light to enter. In particular, the court was not endowed with the task of explaining the attack. Nonetheless, as noted, when presented with credible arguments by the defence, the court did take the bold step to set aside the confessions. Since the confessions carried the only story of the conspiracy to attack Parliament, the court's story of the attack was swift and short.

What we learn from the judgement is that five persons with sundry names attacked the Parliament, killed some people, and died. And Mohammad Afzal aided these attackers. Period.

Voices

The wider issues that surround the case—including the role, if any, of Mohammad Afzal—can and must, then, be addressed in forums other than a court of law. A large number of writers, academicians and lawyers have raised many grave issues concerning the Parliament attack case to which the judgement of the court provides no answers. Importantly, as we will see below, many of these concerns were raised while the court deliberated on the case, and the concerns continue even after the judgement has been delivered.